UNITED STATES COURT OF APPEALS
FOR THE FIRST CIRCUIT

No. 26-1250

MANISH KUMAR,
Petitioner-Appellant,

v.

UNITED STATES OF AMERICA,
Respondent-Appellee.

On Appeal from the United States District Court
for the District of Massachusetts
(Nos. 1:24-cv-12710-MLW; 1:21-cr-10157-AK)

APPELLANT'S RESPONSE IN OPPOSITION TO APPELLEE'S MOTION FOR SUMMARY DISPOSITION, WITH MOTION FOR LEAVE TO FILE OUT OF TIME (TO THE EXTENT NECESSARY) AND ALTERNATIVE REQUESTS FOR LEAVE TO APPLY FOR AN EXPANDED CERTIFICATE OF APPEALABILITY AND FOR VACATUR AND REMAND FOR AN EVIDENTIARY HEARING

PRELIMINARY STATEMENT

The Government asks this Court to end Manish Kumar's appeal without briefing. Summary disposition is reserved for appeals in which it "clearly appear[s] that no substantial question is presented." 1st Cir. R. 27.0(c). This appeal is not one of them. Two district judges have now found Mr. Kumar's constitutional claims debatable among jurists of reason. Judge Wolf, who presided over the case from indictment to judgment, denied the § 2255 motion but issued a certificate of appealability "of the denial of Kumar's 2255 Motion," citing "the unusual facts of

this case." Judge Kelley, after the case was reassigned to her, found that reasonable jurists could disagree about whether counsel's failure to obtain proffer protection prejudiced Mr. Kumar. No court has ever held an evidentiary hearing on that claim.

The Government's motion rests on two moves. On the proffer claim, it says no proffer letter would have helped Mr. Kumar, while the only proffer letter in the record contains the very protection the Government says does not exist. On the remaining claims, it says they fall outside a "limited" certificate. But the certificate the deciding judge issued was not limited. It was narrowed nine months later, after the appeal was docketed, by a successor judge acting on a clerk's order that disposed of no motion, that no party requested, and that Mr. Kumar never received. A deadline set on the strength of that narrowing cannot forfeit claims the judge who decided them certified for appeal. The motion should be denied.

STATEMENT OF THE CASE AND FACTS

"ECF" refers to the district court docket in No. 1:21-cr-10157, and "Mot." to the Government's motion for summary disposition. Record exhibits A through F are attached and listed in the index of exhibits.

The certificate. On August 28, 2025, Judge Wolf denied Mr. Kumar's motion under 28 U.S.C. § 2255 in a 22-page memorandum. ECF 130 (Ex. A). In a separate section titled "Certificate of Appealability," he set out the governing standard, including that a movant must show "that jurists of reason could disagree with the district court's resolution of his constitutional claims," and concluded: "In view of the low bar to obtaining a COA and the unusual facts of this case, the court

is issuing a COA." *Id.* at 21-22. His order provides: "A Certificate of Appealability of the denial of Kumar's 2255 Motion is hereby ISSUED." *Id.* at 22.

Mr. Kumar, incarcerated at FCI Fort Dix, did not learn of that order in time to appeal. The district court later found that he "did not receive notice of the Order," noting that "[t]he docket also does not indicate if the Order was mailed to Mr. Kumar at the prison facility where he is imprisoned," and reopened the time to appeal; the Government "did not oppose the Motion or contest the Declaration." ECF 137 (Ex. B). The case was reassigned from Judge Wolf to Judge Kelley on February 11, 2026, the day Mr. Kumar filed his notice of appeal, and the appeal was docketed in this Court on March 19, 2026. ECF 133 (Ex. B). On May 4, 2026, the district court docket recorded: "Mail sent to Manish Kumar Returned as Undeliverable." ECF 139 (Ex. B).

On May 8, 2026, an order captioned "Order of Court" issued over the Clerk's signature. It states on its face that it was entered "[p]ursuant to 1st Cir. R. 27.0(d)," the rule governing orders of the Clerk. Ex. E. No motion was pending. The order recited that the district court had "granted appellant's request for a certificate of appealability," quoted § 2253(c)(3), and stated that "[t]he district court is requested to identify which issue or issues satisfy the standard set forth in 28 U.S.C. § 2253(c)(2)." *Id.* The order reached the district court docket on June 8, 2026. ECF 140 (Ex. B).

On June 25, 2026, without briefing or a hearing, Judge Kelley entered an electronic order. ECF 141 (Ex. B). She described the Clerk's order as an "Order from the U.S. Court of Appeals for the First Circuit to issue a new Certificate of

Appealability" that had "directed this Court to re-certify the appeal." *Id.* She then evaluated each ground of the § 2255 motion afresh, issued a certificate on two (ineffective assistance for failure to obtain proffer protection, and pre-indictment delay), and declined to certify the other two (ineffective assistance at sentencing, and vindictive prosecution). *Id.* On July 1, 2026, a second clerk's order, also entered under Rule 27.0(d), gave Mr. Kumar until July 31 to apply for an expanded certificate. Ex. E.

Mr. Kumar never received the May 8 order, Judge Kelley's June 25 order, or the July 1 order. Declaration of Manish Kumar ("Kumar Decl.") ¶¶ 3-4. Mail delivery at FCI Fort Dix has been sporadic, and legal mail from the courts has reached him late or not at all. *Id.* ¶ 2. He learned that his certificate had been narrowed only when he received the Government's motion for summary disposition. *Id.* ¶ 5. Consistent with the certificate he had been issued, his opening brief, filed August 24, 2026, argued every ground the district court had decided. The Government moved for summary disposition on September 11, 2026. On September 30, the Court granted the Government's separate motion to stay briefing, as unopposed. No order has set a date for a response to the motion for summary disposition, and the Court has not ruled on it.

The proffers. Mr. Kumar was arrested on August 25, 2019. From that day until February 27, 2020, he met with federal authorities, "including in the District of Massachusetts," and "[d]uring eleven proffer sessions, Kumar provided information and authorized federal investigators to access various personal electronic devices and his Apple ID and email accounts." ECF 130 at 3-4. The only

written proffer agreement in the record is a letter from the United States Attorney for the District of Rhode Island, dated August 27, 2019. ECF 122-1 (Ex. C). The Government "cannot locate a signed copy." ECF 122 at 3 n.2 (Ex. C). Mr. Kumar had no proffer agreement with the District of Massachusetts. *Id.* at 3.

The Rhode Island letter draws three lines. Truthful statements are protected from direct use: "No proffered statement or other information provided by your client will be used against him directly in the case-in-chief of any criminal case, provided that his statements and information are completely truthful and candid." ECF 122-1 ¶ 1. Untruthful statements may be used in a prosecution for false statements. *Id.* And the Government "may make derivative use of the statements and information." *Id.* ¶ 3.

On February 27, 2020, Mr. Kumar met with Massachusetts prosecutors and agents in Boston, with counsel. ECF 122-2 ¶ 3 (Ex. C). What he said there is the basis of Count 3, the false-statement count. ECF 130 at 4. The Government states that before that meeting "the government was not investigating the defendant for drug crimes. He was a cooperating witness." ECF 122 at 14 n.5. Judge Wolf found that "[t]he information Kumar provided in his last proffer session was the starting point for the government's investigation of him." ECF 130 at 20. Defense counsel told the district court that "[t]he primary evidence in support of the charges comes from the statements Mr. Kumar made to law enforcement during the investigation, and the data from his personal electronics which he gave to law enforcement." ECF 75 at 2 (Ex. D).

The Government asked the district court to deny the § 2255 motion "without holding an evidentiary hearing." ECF 122 at 1. The district court held none. Judge Wolf assumed that counsel's failure to obtain a Massachusetts agreement might have been ineffective and rested on prejudice: "[p]roffer letters typically do not protect a person from prosecution for making false statements"; Mr. Kumar had not shown "that the Rhode Island letter was binding on the federal prosecutors in other jurisdictions, including Massachusetts"; and "there is no evidence that the agreement would have protected against the derivative use of Kumar's statements." ECF 130 at 13-14.

ARGUMENT

I. THE RESPONSE IS TIMELY, AND IF IT IS NOT, GOOD CAUSE EXISTS TO ACCEPT IT.

The Government served its motion by first-class mail on a pro se prisoner who does not participate in electronic filing. Mot., Certificate of Service. No order set a response date, and the Court has not acted on the motion. In those circumstances Mr. Kumar's response, filed upon learning of the motion and its consequences, is timely. If the Court applies the 10-day period of Fed. R. App. P. 27(a)(3)(A), extended by three days for mail service under Rule 26(c), Mr. Kumar asks for leave under Rule 26(b), which permits the Court, "[f]or good cause, . . . [to] permit an act to be done after that time expires."

Good cause is established by this record rather than by assertion. The district court has already found that court mail did not reach Mr. Kumar at Fort Dix, and

the Government did not dispute it. ECF 137. The docket records mail to him returned as undeliverable. ECF 139. Mr. Kumar has declared under penalty of perjury that mail delivery at the institution is sporadic and that he never received the orders that narrowed his certificate. Kumar Decl. ¶¶ 2-4. The Government suffers no prejudice: its own brief is stayed at its request, and the Court has not acted on the motion.

II. A CLAIM TWO DISTRICT JUDGES HAVE CERTIFIED AS DEBATABLE DOES NOT "CLEARLY" PRESENT "NO SUBSTANTIAL QUESTION."

Rule 27.0(c) permits summary affirmance only "if it shall clearly appear that no substantial question is presented." The certificate standard measures nearly the same thing from the other side. A certificate issues on a showing "that jurists of reason could disagree with the district court's resolution of his constitutional claims or that jurists could conclude the issues presented are adequate to deserve encouragement to proceed further." *Miller-El v. Cockrell*, 537 U.S. 322, 327 (2003). The Supreme Court has emphasized that a claim can be debatable "even though every jurist of reason might agree, after the [certificate] has been granted and the case has received full consideration, that petitioner will not prevail." *Id.* at 338. The point of a certificate is to secure that full consideration.

A certificate does not forbid summary disposition in every case, and Mr. Kumar does not contend otherwise. But here two judges applied *Miller-El* and reached the same conclusion about the proffer claim. Judge Wolf certified the denial of the motion. ECF 130 at 22. Judge Kelley, evaluating the proffer claim on

its own, wrote: "Reasonable jurists could disagree with this finding, as well as with whether counsel's failure to obtain an immunity agreement caused Defendant to suffer prejudice." ECF 141. The Government's motion mentions that a certificate issued (Mot. 5) but never engages that finding. A question that has twice been found debatable among jurists of reason does not clearly lack substance.

III. THE PROFFER-PROTECTION CLAIM TURNS ON FACTS NO COURT HAS FOUND.

A. The Government's own letter supplies the protection the Government says no letter provides. The Government argues that a Massachusetts proffer agreement would not have mattered because proffer letters "typically" do not protect against false-statement prosecutions or derivative use. Mot. 6 (quoting ECF 130 at 13-14). It told the district court the same thing, offering the Rhode Island letter as the "standard" form. ECF 122 at 8. Mr. Kumar does not contend that any letter would have protected the false statements of February 27, 2020; that concession disposes of Count 3 and nothing else. The standard form the Government chose to put in the record also forbids something both the Government and the district court left out of the analysis: direct use of truthful proffered statements "in the case-in-chief of any criminal case." ECF 122-1 ¶ 1.

That omission is the heart of this appeal. If a Massachusetts agreement would have tracked the Rhode Island form, as the Government insists, then the Massachusetts prosecution could not have used Mr. Kumar's truthful proffered statements against him in its case-in-chief on Counts 1 and 2. The Government's

motion nonetheless asserts that Mr. Kumar cannot show "a realistic possibility that any evidence would have been suppressible." Mot. 6-7. Its premise and its conclusion cannot both be true. The record does not tell the Court which of Mr. Kumar's statements were truthful, which were made to whom, or which the Government used, because no court took evidence on those questions.

B. Prejudice under *Hill* and *Lee* has never been decided. When a defendant pleads guilty, prejudice asks whether there is "a reasonable probability that, but for counsel's errors, he would not have pleaded guilty and would have insisted on going to trial." *Hill v. Lockhart*, 474 U.S. 52, 59 (1985). The Supreme Court has since made clear that this inquiry "focuses on a defendant's decisionmaking, which may not turn solely on the likelihood of conviction after trial." *Lee v. United States*, 582 U.S. 357, 367 (2017). Judge Wolf never reached that question. His prejudice analysis asked only whether a letter would have barred a false-statement prosecution or derivative use. ECF 130 at 13-14.

The Government tries to fill the gap on appeal with "overwhelming and independent evidence of Kumar's guilt," citing its own background section, which is drawn from the presentence report. Mot. 7. That argument measures prejudice by the likelihood of conviction alone, the approach *Lee* rejected as the sole test. It also assumes the fact in dispute. Whether the evidence was independent of Mr. Kumar's proffers is the question the hearing would answer, and the record points the other way. The Government says Mr. Kumar was a cooperating witness, not a drug-investigation target, until February 27, 2020. ECF 122 at 14 n.5. The district court found that what he said in his last proffer session was "the starting point" of

the investigation of him. ECF 130 at 20. Defense counsel represented that the primary evidence was his own statements and the data on the devices he handed over. ECF 75 at 2. Whether the Government could have built and proved its case on Counts 1 and 2 without his protected statements, and whether Mr. Kumar would have gone to trial on those counts had his statements been protected, are fact questions.

The Government adds that a trial would have cost Mr. Kumar the reduction for acceptance of responsibility. Mot. 7 (citing USSG § 3E1.1, cmt. n.2). That incentive exists in every case, and it is the reason *Lee* directs courts to the defendant's actual decision rather than to generalizations about what pleading defendants gain. 582 U.S. at 367. A defendant deciding whether to plead weighs the evidence that can be used against him. If his own statements could not be used in the Government's case-in-chief, the calculation he faced would have been a different one. No court has examined what that calculation would have been.

The Government's authorities confirm that such questions cannot be resolved on this record. *United States v. Caramadre*, 807 F.3d 359, 371 (1st Cir. 2015), and *United States v. Fernández-Santos*, 856 F.3d 10, 17 (1st Cir. 2017), were direct appeals from the denial of motions to withdraw guilty pleas, decided on records the district courts had built. *Fernández-Santos* went further: because the defendant's ineffective-assistance claim could not be "determined without the need for additional fact finding," this Court declined to decide it and affirmed "without prejudice to Fernández's right to raise his ineffective-assistance-of-counsel claim in a collateral proceeding." 856 F.3d at 17, 22 (quotation omitted). This is that

collateral proceeding. The fact finding *Fernández-Santos* anticipated has still not occurred.

C. The district court's binding ruling rests on an undeveloped record. Judge Wolf held that Mr. Kumar had not shown that the Rhode Island letter bound Massachusetts prosecutors. ECF 130 at 14. The letter's text promises that no truthful statement will be used "in the case-in-chief of *any* criminal case." ECF 122-1 ¶ 1 (emphasis added). The Government cannot produce a signed copy. ECF 122 at 3 n.2. Judge Wolf described the sessions as eleven meetings with federal authorities "including in the District of Massachusetts" (ECF 130 at 3), and also as a "single proffer session with federal authorities in Massachusetts" (*id.* at 19). Who attended which session, under what understanding, and with what Massachusetts involvement are the facts on which the binding question turns. The Government recognized below that if any issue was live it "will need to speak with and to obtain evidence from Kumar's former counsel." ECF 122 at 17-18. Section 2255(b) requires a hearing "[u]nless the motion and the files and records of the case conclusively show that the prisoner is entitled to no relief." 28 U.S.C. § 2255(b). The Government's motion does not mention that requirement.

D. The standard of review the Government invokes does not apply. The Government contends that Mr. Kumar must show "clear error" in the prejudice findings, citing *Dugas v. Coplan*, 506 F.3d 1, 3 (1st Cir. 2007). Mot. 7. *Dugas* was a state-prisoner habeas appeal decided after the district court held its own evidentiary hearing. It explains that deference follows "[w]hen the district court has held an evidentiary hearing and made its own determinations as to the weight of the

evidence and the credibility of witnesses," and that review of a mixed question such as prejudice "depends, in the last analysis, on the extent to which a particular question is fact-dominated or law-dominated." *Id.* (quoting *Pike v. Guarino*, 492 F.3d 61, 68 (1st Cir. 2007)). Here there was no hearing, no testimony, and no credibility determination. This Court sits in the same position as the district court with respect to the paper record, and on that record the prejudice question is open.

IV. THE CERTIFICATE JUDGE WOLF ISSUED COVERS THE DENIAL OF THE MOTION, AND A CLERK'S REQUEST COULD NOT AUTHORIZE ITS LATER NARROWING.

The Government declines to address vindictive prosecution and ineffective assistance at sentencing because, it says, they are "well beyond the limited scope of the COA." Mot. 9. The certificate issued by the judge who decided the motion had no such limit.

A. Judge Wolf certified every issue the motion presented. Section 2253(c) contemplates a single certificate, issued by "a circuit justice or judge." 28 U.S.C. § 2253(c)(1). This Court has held that a district judge may issue it and that the statute "explicitly contemplates the issuance of only one certificate before an appeal to this court may be taken." *Grant-Chase v. Comm'r*, 145 F.3d 431, 435 (1st Cir. 1998). In *Bui v. DiPaolo*, 170 F.3d 232 (1st Cir. 1999), this Court held that certificates are issue-specific, and it described the consequence when the district court finds every issue certifiable: "if the application raises only issues that, according to the district court, uniformly pass muster under the substantial showing standard and, thus, are certifiable . . . then a free-ranging appeal lies." *Id.* at 236. This Court's local rule

says the same: "If the district court grants a certificate of appealability on all issues, the petitioner's appeal shall go forward." 1st Cir. R. 22.0(d).

That is what Judge Wolf did. He did not deny certification on any ground. He applied the *Miller-El* standard to "the unusual facts of this case" and issued a certificate "of the denial of Kumar's 2255 Motion," which is to say, of his resolution of every ground the motion raised. ECF 130 at 21-22. Mr. Kumar acknowledges that Rule 11(a) of the Rules Governing Section 2255 Proceedings directs a court issuing a certificate to state the specific issues. Judge Wolf's order identifies them by reference to the decision it certifies, and the issues were the four grounds his memorandum had just resolved. If more specificity was required, the remedy belonged to this Court, and it was not a second, narrower certificate from a different judge. The specification requirement of § 2253(c)(3) is not jurisdictional. *Gonzalez v. Thaler*, 565 U.S. 134, 137 (2012). The Supreme Court explained what happens when it is not met: "If a party timely raises the COA's failure to indicate a constitutional issue, the court of appeals panel must address the defect by considering an amendment to the COA or remanding to the district judge for specification of the issues." *Id.* at 146.

B. The narrowing originated in a clerk's order, not a ruling of this Court. None of the steps *Gonzalez* describes occurred. No party objected to Judge Wolf's certificate. No panel considered it. The May 8 order was a clerk's order. Its caption reads "Order of Court," as does the July 1 order, but the Court's procedures provide that "a clerk's order states on its face that it is entered pursuant to 1st Cir. R. 27.0(d)," and this one does. 1st Cir. I.O.P. V(C); Ex. E. Under Rule 27.0(d), the

Clerk "is authorized to dispose of certain routine, procedural motions in accordance with the Court's standing instructions," and the Court's Internal Operating Procedures give examples: "motions for an enlargement of time, to consolidate, to correct filings, to correct captions, and to withdraw as counsel." 1st Cir. R. 27.0(d); 1st Cir. I.O.P. V(C). The May 8 order disposed of no motion. It addressed whether a judge's certificate satisfied § 2253(c)(3), a question the statute and the appellate rules commit to judges. 28 U.S.C. § 2253(c)(1); Fed. R. App. P. 22(b)(1)-(2). Whatever administrative purpose the order served, it could not perform the function *Gonzalez* assigns to a panel, on an objection no party made.

C. Judge Kelley's order went beyond the request it answered. Even taken on its own terms, the May 8 order did not direct re-certification. It "requested" that the district court "identify which issue or issues satisfy the standard." Ex. E. Judge Wolf had already answered that question: all of them. Judge Kelley instead treated the order as having "directed this Court to re-certify the appeal" and as an instruction "to issue a new Certificate of Appealability." ECF 141. She then re-applied *Miller-El* to each ground and declined to certify two grounds that Judge Wolf had certified. *Id.* That was not identification of what the deciding judge found certifiable. It was reconsideration of a predecessor's ruling, entered after the notice of appeal, which "confers jurisdiction on the court of appeals and divests the district court of its control over those aspects of the case involved in the appeal." *Griggs v. Provident Consumer Disc. Co.*, 459 U.S. 56, 58 (1982) (per curiam). It was entered without notice to Mr. Kumar or an opportunity to be heard, although Rule 11(a) itself contemplates that the court may "direct the parties to submit

arguments on whether a certificate should issue."

D. A deadline Mr. Kumar never received cannot forfeit claims the deciding judge certified. The July 1 order set a deadline for a petitioner whose certificate had been partially denied. Ex. E. *Bui* created that procedure for a petitioner who receives a "limited COA" from the district court, and described this Court's "present practice to notify each habeas petitioner of an outside date," after which "[f]ailure to file within that interval may be deemed to constitute a waiver." 170 F.3d at 237. The rule presupposes two things absent here: a partial denial by the judge who decided the motion, and notice. Its operative word is "may."

The Government's authorities involved neither feature. In *Peralta v. United States*, 597 F.3d 74 (1st Cir. 2010) (per curiam), the petitioner himself asked the district court to certify two issues, received a certificate on exactly those two, and then argued new issues that he "never addressed in his request for a COA"; having "failed to request a COA as to those issues in either the district court or the court of appeals," he waived them. *Id.* at 83-84. In *Vargas-De Jesús v. United States*, 813 F.3d 414 (1st Cir. 2016), the district court denied a certificate altogether, this Court granted one on a single question, and the petitioner "did not attempt — below or on appeal — to obtain a COA" on the issue he later pressed. *Id.* at 419 n.6. Mr. Kumar raised each of his grounds in his § 2255 motion; the deciding judge resolved each of them and certified the denial; and the later narrowing reached him, if at all, only through the Government's motion. Kumar Decl. ¶¶ 3-5. His opening brief argued every ground, which is what a petitioner holding Judge Wolf's certificate would do and what a petitioner who had received the July 1 order would not.

The claims the Government declines to address are therefore before the Court, and the Government's refusal to address them is no basis for summary affirmance. If the Court concludes that the June 25 order governs, Mr. Kumar asks, in the alternative, for leave to file an application for an expanded certificate under Rule 22.0(c)(2) within 30 days, limited to vindictive prosecution and ineffective assistance at sentencing.

V. THE PRE-INDICTMENT DELAY CLAIM IS NOT "PLAINLY WAIVED."

The Government argues that the delay claim is waived because the motion to dismiss was withdrawn and Mr. Kumar pleaded guilty unconditionally. Mot. 7-8. Its waiver authorities address a different situation. In *United States v. Concepción-Guliam*, 62 F.4th 26, 31 (1st Cir. 2023), the defendant withdrew a Fourth Amendment claim in the district court and tried to revive it on direct appeal. In *United States v. Rodriguez*, 311 F.3d 435, 437 (1st Cir. 2002), the defendant withdrew a sentencing objection, "both personally and through counsel," and then tried to argue it on direct appeal. Neither involved a collateral claim that the withdrawal itself was the product of counsel's deficient advice. That claim is preserved by the case the Government cites for waiver: a defendant who pleads guilty on counsel's advice "may only attack the voluntary and intelligent character of the guilty plea by showing that the advice he received from counsel was not within the standards set forth in *McMann*." *Tollett v. Henderson*, 411 U.S. 258, 267 (1973). In *United States v. Gaffney*, 469 F.3d 211, 214-15 (1st Cir. 2006), also cited

by the Government, this Court declined to rest on *Tollett* where the plea was arguably intertwined with the claimed violation, and decided the appeal on other grounds.

The record shows why the withdrawal is open to that attack. The motion to withdraw states only that Mr. Kumar withdrew the motions "in light of his request for a Rule 11 Hearing." ECF 80 (Ex. F). By the Government's own account, Mr. Kumar then wrote to the court "explaining explicitly that he wanted to withdraw his motion to dismiss and to plead guilty because he believed that his guideline sentencing range was only 15-20 months." ECF 122 at 6. He was sentenced to 87 months. Judge Kelley certified the delay claim because "[r]easonable jurists could disagree with [the district court's] conclusion about the effect of the COVID-19 pandemic and its effects on prosecutorial delay." ECF 141. Whether a waiver made on that understanding was knowing and intelligent is a substantial question in its own right.

CONCLUSION

The Court should (1) deem this response timely or, to the extent necessary, grant leave to file it out of time; (2) deny the motion for summary disposition; (3) hold that the certificate issued on August 28, 2025 governs the scope of this appeal or, in the alternative, grant Mr. Kumar 30 days to apply for an expanded certificate; (4) lift the stay and set a schedule for the Government's brief; and (5) in the alternative to denial, vacate and remand for an evidentiary hearing under 28 U.S.C. § 2255(b) on the proffer-protection claim.

Respectfully submitted,

_____

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Dated: _____, 2026

CERTIFICATE OF COMPLIANCE

This document complies with the type-volume limit of Fed. R. App. P. 27(d)(2)(A) because, excluding the parts exempted by Fed. R. App. P. 32(f), it contains 4693 words, as counted by word-processing software. It complies with the typeface requirements of Fed. R. App. P. 32(a)(5) and the type-style requirements of Fed. R. App. P. 32(a)(6) because it is prepared in a proportionally spaced typeface (Times, 14 point).

_____

Manish Kumar, pro se
Dated: _____, 2026

CERTIFICATE OF SERVICE AND DECLARATION OF INMATE FILING

I, Manish Kumar, certify that on _____, 2026, I deposited the foregoing document, with the attached declaration and exhibits, in the internal legal mail system of FCI Fort Dix, New Jersey, with first-class postage prepaid, addressed to the Clerk, United States Court of Appeals for the First Circuit, John Joseph Moakley United States Courthouse, 1 Courthouse Way, Suite 2500, Boston, MA 02210 (original and three copies). On the same date and in the same manner I served a copy on the following persons at the following address: Donald C.

Lockhart and Kriss Basil, Assistant United States Attorneys, United States Attorney's Office, 1 Courthouse Way, Suite 9200, Boston, MA 02210.

I declare under penalty of perjury that the foregoing is true and correct. 28 U.S.C. § 1746; Fed. R. App. P. 25(a)(2)(A)(iii), 25(d). Executed on _____, 2026.

_____

Manish Kumar